

25VECV03329 25VECV03329

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 25VECV03329 Hearing Date: August 19, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

SANDRO SPLENDORE,

Plaintiff,

vs.

BRUCE BROCKETT, INDIVIDUALLY, AND AS
TRUSTEE OF THE BROCKETT TRUST DATED FEBRUARY 29, 2024; AND DOES 1 THROUGH 50,

Defendants.

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CASE NO.: 25VECV03329

ORDER

GRANTING PLAINTIFF'S MOTIONS TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES,
SET ONE, FORM INTERROGATORIES, SET ONE, AND REQUESTS FOR PRODUCTION OF
DOCUMENTS, SET ONE

ORDER

GRANTING PLAINTIFF'S MOTION TO DEEM ADMITTED REQUESTS FOR ADMISSION, SET ONE

BRUCE BROCKETT, INDIVIDUALLY, AND AS
TRUSTEE OF THE BROCKETT TRUST DATED FEBRUARY 29, 2024,

Cross-Complainant,

vs.

SANDRO SPENDORE.

Cross-Defendant.

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1.

BACKGROUND

This is a property dispute action. Defendant and Cross-Complainant Bruce Brockett, individually and as trustee of the Brockett Trust dated February 29, 2024, (jointly “Brockett”) alleges he owns a portion of the property located at 31041 Lobo Canyon Road, Agoura Hills, California 91301 (the “Property”) by adverse

possession. (See First Amended Cross-Complaint ("FAXC"), ¶¶ 3, 9.)

Brockett alleges Plaintiff and Cross-Defendant Sandro Splendore ("Splendore") resides at the Property. (See FAXC, ¶ 2.)

Splendore now moves to compel Brockett's responses to his Requests for Production (Set One), Special Interrogatories (Set One), and Form Interrogatories (Set One). Splendore also moves to deem admitted his Requests for Admission (Set One).

II.

PROCEDURAL

HISTORY

On April 30,
2024, Plaintiff filed a Complaint

On June 15,
2025, Splendore filed a Complaint alleging (1) Trespass and Injunctive Relief;
(2) Negligence; (3) Quiet Title; (4) Ejectment; and (5) Declaratory Relief.

On August 28,
2025, Brockett filed an Answer.

On September
2, 2025, Brockett filed a Cross-Complaint.

On December
11, 2025, Brockett filed his FAXC alleging (1) Quiet Title (Adverse Possession); (2) Declaratory Relief; and (3) Alternative Claim for Prescriptive Easement.

On April 1,
2026, the Court overruled Splendore's Demurrer as to the First Cause of Action for Quiet Title and Third Cause of Action for Prescriptive Easement. but sustained it without leave to amend as to the Second Cause of Action for Declaratory Relief.

On April 17,
2026, Splendore filed an Answer as to the remaining causes of action in the FAXC.

On June 26,
2026, Splendore filed the instant discovery Motions.

On August 14,
2026, Brockett's counsel filed a declaration responding to the Motions.

As of August
14, 2026, no reply has been filed.

III. LEGAL STANDARD

A. Requests for Production

A party upon
whom a demand for the production of documents has been made has 30 days after
service of the demand to respond. (See Code Civ. Proc. § 2031.260(a).)[1] The
propounding and responding parties may agree to extend the time for response. (See
Code Civ. Proc. § 2031.270(a).) When a party fails to serve a timely
response, the propounding party's remedy is to seek a motion to compel
response. (See Code Civ. Proc. § 2031.300(b).) A responding party that
does not provide responses waives the right to object to the demand, including
objections based on privilege or work product. (See Code Civ. Proc. §
2031.300(a).) 2

B. Interrogatories

If a party to
whom interrogatories are directed fails to serve a timely response, the
propounding party may move for an order compelling responses and for a monetary
sanction. (See Code Civ. Proc. § 2030.290(b).) The statute contains no
time limit for a motion to compel where no responses have been served. All that
need be shown in the moving papers is that a set of interrogatories was
properly served on the opposing party, that the time to respond has expired,
and that no response of any kind has been served. (See *Leach v. Superior
Court* (1980) 111 Cal.App.3d 902, 905-906.)

C.

Requests for Admission

“Any party

may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties.” (Code Civ. Proc. § 2033.010.) “Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared...” (Code Civ. Proc. § 2033.250(a).)

If a party to

whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (See Code Civ. Proc. § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (See Code Civ. Proc. § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (See Code Civ. Proc. § 2033.280(c).)

IV.

ANALYSIS

Splendore moves to

compel Brockett's responses to his Requests for Production (Set One), Special Interrogatories (Set One), and Form Interrogatories (Set One). Splendore also moves to deem admitted as to Brockett his Requests for Admission (Set One). Because the Motions rely on substantially similar facts, the Court will address them together.

On March 30, 2026,

Splendore served on Brockett his SROGs, FROGs, RFPs, and RFAs. (See e.g. SROGs Declaration of Erica Barseghian filed June 26, 2026 (“SROGs Barseghian Decl.”), ¶ 3.) Splendore’s counsel attests he has not received initial

responses to date despite having sent a meet and confer letter to Brockett's counsel. (See id., ¶¶ 6-7.)

Brockett's counsel

attests he provided Splendore's counsel with discovery responses and documents to the best of his ability, but several owners related to this property dispute are deceased and documents cannot be located. (See Declaration of Michael E. Barmasse filed August 14, 2026., ¶ 6.) Brockett's counsel attests this is a matter for mediation. (See id., ¶ 7.)

The Court rules on

discovery motions based on the circumstances at the time the motion was filed. Because Splendore had not received initial responses at the time of filing the instant Motions, the Court GRANTS Splendore's Motions to Compel SROGs, FROGs, and RFPs. The Court GRANTS Splendore's Motion to Deem RFAs Admitted.

Brockett is ordered to

provide responses without objection on or before September 4, 2026.

V.

DISCOVERY

SANCTIONS

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel . . ." responses to interrogatories or production demands, absent substantial justification or other circumstances that make imposing the sanctions unjust. (Code Civ. Proc. § 2030.290(c), § 2031.300(c).) The court shall also impose a "monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc. § 2033.280(c).)

Splendore requests discovery sanctions

in the amount of \$960.00 in connection with each discovery motion. This total comprises 1 hour to prepare each Motion, 1 hour to prepare a Reply, and 1 hour to attend the hearing at counsel's hourly rate of \$300.00. (See e.g. SROGs Barseghian Decl., ¶ 8.) Splendore also incurred a \$60.00 filing fee for each motion. (See id.)

The Court awards

Splendore discovery sanctions of \$840.00. The Court finds 1.5 hours to prepare

4 routine, substantially similar discovery motions and 0.5 hours to remotely appear at the hearing and counsel's hourly rate is reasonable. The Court also awards the filing fees.

Brockett is ordered to pay
Plaintiff's counsel \$840.00 on or before September 30, 2026.

VI.

CONCLUSION

Based on the
foregoing, the Court GRANTS Splendore's Motions to Compel SROGs, FROGs, and RFPs. The Court GRANTS Splendore's Motion to Deem RFAs Admitted. Brockett is ordered to provide responses without objection on or before September 4, 2026.

Brockett's counsel is
ordered to pay Plaintiff's counsel \$840.00 on or before September 30, 2026.

IT

IS SO ORDERED.

DATED: August 19, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.